

26STCP01820 26STCP01820

County: los-angeles

Division: Civil Law and Motion

Department: 408

Hearing date: 2026-07-02

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Case Number: 26STCP01820 Hearing Date: July 2, 2026 Dept: 408

On

May 12, 2026, Petitioner Intelifund, LLC ("Petitioner") filed a petition to approve transfer of payment rights as to Jasmine Hernandez ("Payee").

On May 14, 2026,

Petitioner filed this Motion to Approve Transfer of Payment Rights as to Payee.

On May 27, 2026,

Petitioner filed a First Amended Petition ("FAP").

On

June 5, 2026, Petitioner filed an Amended Motion to Approve Transfer of Payment Rights. No opposition or other responsive pleading has been filed.

Petitioner seeks an order approving the transfer of payment rights pursuant to Insurance Code section 10134(c)(1). Insurance

Code section 10139.5 provides the factors to be considered by the court in determining whether to approve the transfer of a structured settlement. (Ins. Code, § 10139.5.)

The transfer must be in the best interest of the payee, considering the welfare and support of the payee's dependents. (Ins. Code, § 10139.5, subd. (a)(1).) When determining whether the transfer is fair, reasonable, and in the payee's best interests, the court must consider the totality of the circumstances, including but not limited, to those circumstances listed in Insurance Code section 10139.5, subdivision (b). (Ins. Code, § 10139.5, subd. (b).)

In 2006, Payee became entitled to certain structured settlement payments arising in connection with a wrongful death lawsuit. The 2006 Settlement Agreement called for the following payments: (1) Annual payments between 2018 and 2022 of \$17,578.05; (2) a lump sum of \$30,000 due on July 10, 2025; (3) a lump sum of \$75,000 due on July 10, 2030; (4) a lump sum of \$117,224.41 due on July 10, 2035; and a lump sum of \$500,000 due on July 10, 2040. (Amended Motion, Exh. 8 [Addendum to Petition].)

However, the Structured Settlement Payments Purchase Agreement ("Purchase Agreement") contends that Petitioner is to pay Payee \$95,678.89 and Payee will "sell, assign, and convey the following payments: (1) a lump sum of \$30,000 due on July 10, 2030; (2) a lump sum of \$75,224.41 due on July 10, 2035; and (3) a lump sum of \$250,000 due on July 10, 2040. (Amended Motion, Exh. 2.) Moreover, in her declaration Payee contends she is "selling, assigning and conveying" the following assigned payments: (1) a lump sum of \$30,000 payable on July 10, 2030; (2) a lump sum of \$75,224.41 on July 10, 2035; and (3) a lump sum payment of \$250,000 due on July 10, 2040.

The court cannot consider the petition until it is clear of the amount owed and the timing of each payment. The amounts and dates of payments in the 2006 Settlement Agreement are different than what is indicated in Payee's declaration and the Purchase Agreement also provides different amounts and payment dates. The court will inquire at the hearing how Petitioner and Payee want to proceed.